

Petitioner v. Chairman, Energy Deptt., U.P. Power Corporation Ltd. & Ors.

High Court of Judicature at Allahabad (Lucknow Bench) · Division Bench · 15 September 2025 · WRIT - C No. 9013 of 2025 · **Writ disposed of; process any new connection under clause 4.4.**

HEADNOTE

A vendor's writ to restrain a new electricity connection to the purchaser during pending civil and cheque-dishonour litigation was disposed of with a direction that the licensee follow paragraph 4.4 of the Electricity Supply Code, in letter and spirit, when processing any application for a new connection. The Court neither blocked the connection nor decided the petitioner's claim to a hearing.

FACTUAL SUMMARY

The petitioner sold Plot No. 79/3A, Havelock Road, Lucknow to respondent no.6 under a registered sale deed. Cheques towards sale consideration were dishonoured, prompting an NI Act complaint and a civil suit for injunction; LDA had also issued a demolition order. Respondent no.6 applied for a new electricity connection. The petitioner sought a mandamus restraining the licensee from granting it during the pending litigation, or a hearing before any connection. The SDO reported that no connection had yet been released.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

new connection — process under clause 4.4

HOLDING

A writ seeking to restrain the licensee from granting a new electricity connection to a purchaser during pending civil and NI Act litigation was disposed of with a direction that the respondents follow paragraph 4.4 of the Electricity Supply Code in letter and spirit when processing any application for a new connection. The Court did not restrain the connection and did not decide whether the petitioner was entitled to a hearing. ¶ 6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER A NEW CONNECTION TO THE PURCHASER MAY BE REFUSED OR DEFERRED BECAUSE OF THE PENDING CIVIL SUIT, NI ACT COMPLAINT, OR DEMOLITION ORDER

¶ 5-6

NOT DECIDED — WHETHER THE VENDOR-PETITIONER IS ENTITLED TO A HEARING BEFORE ANY CONNECTION IS GRANTED TO RESPONDENT NO.6

¶ 5-6